

CASEM, et al v FOUST

24CV47471

DEFENDANT'S MOTIONS TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES

This case involves claims of negligence with regards to electrical work performed on real property and ensuing damages after a fire. Steve Casem and Wanda Casem ("Plaintiffs") bring causes of action for negligence and violation of Civil Code section 1941 against David Foust ("Defendant.") Now before the Court are two motions to compel discovery responses filed by Defendant.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the

court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language In the notice may be a basis for the Court to deny the motion.

Accordingly, the motions are **denied without prejudice to refile**.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

**LAKES TREATMENT CENTER, INC., et al v
LAKE TULLOCH, LLC, et al**

21CV45585

DEFENDANT VAN'S MOTIONS TO COMPEL

This case stems from a property dispute between The Lakes Treatment Center, Inc. ("LTC") and Bernadette Cattaneo ("Cattaneo") (collectively, "Plaintiffs"), and The Resort at Lake Tulloch, ("Resort"), Narullah Safdari ("Safdari"), Odell Tristin ("Tristin"), Michael Van ("Van"), Andreas Ambramson ("Ambramson"), and Diamond Dirt LLC ("Diamond") (collectively, "Defendants.")

Now before the Court are three motions to compel brought by Van against co-Defendants Safdari and Tristin. Specifically, Van brings against Tristin two motions: 1) Motion to Compel Verified Responses to Request for Production, Set One ("RFP") and 2) Motion to Compel Compliance with Responses to RFPs. As against Safdari, Van brings a Motion to Compel Verified Responses to Request for Production, Set One ("RFP.")

The motions are unopposed. For convenience, the Court will refer to Safdari and Tristin as "Defendants" unless otherwise specified.

The motions do not comply with California Rules of Court 3.1345 because they do not contain a separate statement. The purpose of the separate statement is so that "no person is required to review any other document in order to determine the full request and the full response." (Cal. Rules of Court 3.1345(c).) Although the court has discretion to deny the motions based on this failure, for expediency the Court considers the motions. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409 fn. 14.)

I. Procedural History

On June 27, 2025, Van served Defendants with Request for Production, Set One ("RFP"). (Declaration of Michael J. Laino ("Laino Decl.") ¶ 2, Exs. A and B.) Both Defendants failed to provide any timely response, thus Van's attorney sent a meet and confer requesting object-free responses by August 15, 2025 and production of documents by August 22, 2025. (*Id.* ¶¶ 3-4, Ex. C.) No responses were provided. (*Id.* ¶